



Freedom of Expression In the Digital Age: Misuse of AI for Political Propaganda

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According to Milton, freedom of speech is defined as “The liberty to know, to utter, and to argue freely according to conscience, above all liberties.” It is understood to embrace all other cognate rights involved in the communication of ideas and fall under the more comprehensive concept of freedom of expression. Such freedom is guaranteed by the Constitution to empower the people in the search of truth, and to test the acceptability of one’s thoughts in the marketplace of ideas.

Freedom of expression is not just a right but a duty. The citizens are given the information and freedom required for them to be able to perform their civic duties and exercise democracy, where they have the right to offer their views and suggestions in the discussions involving the public interest. Everyone is allowed to articulate their views through the many methods by which ideas are born and communicated from one’s mind to another. Citizens are free to express their thoughts by speaking, writing, singing, or dancing and many more, for these are forms of expression that are protected by the Constitution.¹

As time progressed, the concept and form of the freedom of expression evolved. In the past, to express one’s concerns or views, the citizens would march and gather in the streets carrying their picket signs and posters just to voice their concerns involving the public or regarding politics. In the present, the rise of technology has shifted the exercise of the freedom of expression in the digital platform.

Expression and exchanges of views have been prevalent online ever since social media has begun to dominate the digital world. One click of a person and their thoughts can be seen online by anyone who is connected. “Facebook” in particular has been the staple place where people voice their opinions, mostly when it comes to social or political issues. People have absolute freedom to post anything, whether it be in videos, photos, or texts. Furthermore, with the introduction of AI, expressing views and opinions have become even easier online: instead of sharing others’ contents, people may now be able to generate what their views or expressions are, in videos, photos, text, and even music.

¹ Isagani A. Cruz & Hector S. De Leon, *Constitutional Law* 649–51 (2024).; Joaquin G. Bernas, *The 1987 Constitution of the Republic of the Philippines: A Commentary* 231 (2009).



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AI has revolutionized the way people interact with and consume media. People have been able to process and analyze vast amounts of data quickly, making it easier to find and access the information needed. Its key feature where most people use it, is through the generation of endless contents such as images, music, text and videos (Societe Generale Private Banking, 2022). There are limitless possibilities people can interact with the use of AI.

AI has its benefits to society, however, it can also be a tool in spreading disinformation and malicious political propaganda. The Philippines is not new to election-related disinformation. Its citizens have witnessed the proliferation of deliberate and targeted disinformation campaigns on social media, attributed to the so-called 'online troll networks', which have operated since the 2016 general election and played an infamous role in the 2022 election. Supporters would utilize generative contents to express their support to their selected political candidate, or to mock the opposition.²

President “Bong Bong” Marcos wasn't spared from being a victim of AI. A deep fake video surfaced on “Facebook” named as the “polvoron video” where it tried to make it appear that President Marcos was snorting illegal drugs. The video was found to be suspicious and bears signs of manipulation called face swap. This is not new to public officers and figures—they are subject to public comment or criticism, where the people have a right to scrutinize, condemn or commend such officers of the government, and as long as the comments or any other acts by the people are made in good faith and with justifiable ends. In the video posted by the critics of President Marcos, they are trying to slander him and maliciously ruin his reputation as the President of the Philippines. The act of posting the video does not translate to the criticism of the official acts of the President but for intentionally defaming his honor and reputation.³ Freedom of expression does not cover ideas offensive to public order or decency or the reputation of persons, which are all entitled to protection by the State.⁴

In a more recent event, Senator “Bato” Dela Rosa unapologetically shared an AI-generated video of Filipino students opposing the impeachment of Vice President Sara Duterte. The video depicted a fabricated man-on-the-street interview featuring AI-generated students being asked whether they supported the impeachment. The fake students said they were against it, arguing that the Office of the Vice President was being “singled out”

² Tempering the Philippines' AI Disinformation Storm, *East Asia Forum* (Oct. 16, 2024), <https://eastasiaforum.org/2024/10/16/tempering-the-philippines-ai-disinformation-storm/>

³ TAI Experts Debunk Marcos' Alleged Drug-Snorting Video, *PhilStar Global* (Sept. 22, 2024), <https://www.philstar.com/headlines/2024/09/22/2387005/ai-experts-debunk-marcos-alleged-drug-snorting-vid>

⁴ *Supra* note 1



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over confidential funds. Given Dela Rosa's position, sharing such misleading content could cause many to believe videos like that are real. Political propaganda is not covered by the freedom of expression; although the Senator was only expressing his political views, and has the right to share any contents as he desire, freedom of expression, however, does not cover the freedom to disseminate misinformation. Freedom of expression as discussed above is the freedom that seeks the truth in the exchange of information and opinions.⁵

Freedom of expression is not an absolute right. Like all rights, it is subject to the police power and may be properly regulated in the interest of the public. As mentioned above, freedom of expression does not cover the ideas offensive to public order or decency or the reputation of persons. Thus, the lewd, the obscene, the seditious, the slanderous words or acts, cannot be considered as "a step to truth" and therefore will not enjoy the immunity from prohibition and punishment.⁶

⁵ Philstar Global, *Dela Rosa Draws Flak over AI Video of Students Opposing Sara Duterte's Impeachment* (June 16, 2025), <https://www.philstar.com/headlines/2025/06/16/2450990/dela-rosa-draws-flak-over-ai-video-students-opposing-sara-dutertes-impeachment>

⁶ Supra Note 1



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